

Kanak Srivastava v. State of U.P.

Allahabad High Court · Division Bench · 24 January 2025 · 2025:AHC:12901-DB · WRIT-C No. 31789 of 2024 · **Writ disposed of; petitioner directed to apply under Clause 6.5.**

HEADNOTE

A writ petitioner in an electricity dispute was directed to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the application is filed within two weeks, the authorities must grant a hearing and pass an order in accordance with law within eight weeks. The petition was disposed of without examining the merits.

FACTUAL SUMMARY

Kanak Srivastava filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and two others. Counsel for the petitioner and the Standing Counsel for the State were heard. The order does not record the nature of the underlying electricity grievance, any prior objection to the licensee, or which of the respondents is the distribution licensee. The Court treated the matter as one for a Clause 6.5 application under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

application under clause 6.5

HOLDING

A consumer who has approached the High Court in a writ should file an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if that application is made within two weeks, the authorities shall grant a hearing and thereafter pass an order in accordance with law within eight weeks of filing. ¶ 2

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ petitioner in an electricity dispute was directed to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the application is filed within two weeks, the authorities must grant a hearing and pass an order in accordance with law within eight weeks.. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

The Court did not examine the underlying dispute and relegated the petitioner to Clause 6.5. ¶ 2-3